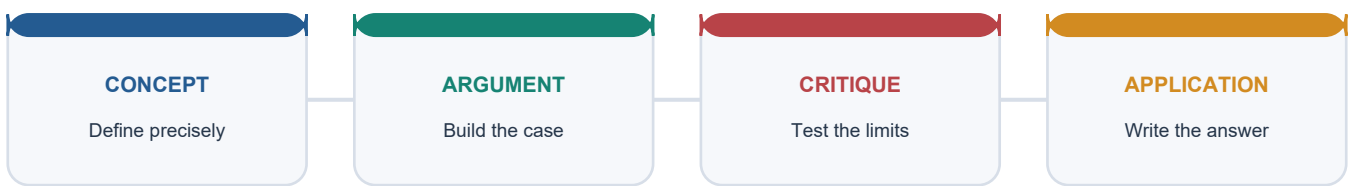


SOLVED PRACTICE WORKBOOK

CIC and SIC - Solved Practice Workbook

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

LEARNING PATH



Deterministic fallback visual: move from precise concepts through argument and critique to exam application.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

CONTENTS / WORKBOOK INDEX

Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

CIC and SIC - Solved Practice Workbook	4
BASIC MCQS / REMEDIATION	4
MCQ 1. Legal identity	4
MCQ 2. Meaning of information	4
MCQ 3. Forms of access	4
MCQ 4. Public-authority gateway	5
MCQ 5. Proactive disclosure	5
MCQ 6. APIO route	5
MCQ 7. Application and transfer	6
MCQ 8. Decision clocks	6
MCQ 9. Delay consequences	6
MCQ 10. Exemption method	7
MCQ 11. Public-interest override	7
MCQ 12. Twenty-year rule	7
MCQ 13. Copyright	8
MCQ 14. Severability	8
MCQ 15. Third-party procedure	8
MCQ 16. CIC composition	8
MCQ 17. CIC appointment	9
MCQ 18. SIC appointment	9
MCQ 19. Qualifications and bars	9
MCQ 20. Act versus Rules	10
MCQ 21. Reappointment	10
MCQ 22. Removal	10
MCQ 23. Complaint and appeal	11
MCQ 24. Section 18 powers	11
MCQ 25. First appeal	11
MCQ 26. Second appeal and burden	11
MCQ 27. Section 19 remedies	12

MCQ 28. Penalty discipline	12
MCQ 29. Section 24	12
MCQ 30. Override and court bar	13
MCQ 31. Case-law control	13
MCQ 32. Monitoring and access reform	13
PYQS AND ANSWER PRACTICE	14
Verified-PYQ and official-key discipline	14
Verified Mains PYQ - UPSC Civil Services (Main) Examination 2020, GS-II, Question 2 - 10 marks, 150 words	14
ORIGINAL MAINS PRACTICE - EXACTLY SIX MODELS	14
Original Mains 1 - 10 marks, 150 words	14
Original Mains 2 - 10 marks, 150 words	15
Original Mains 3 - 15 marks, 250 words	15
Original Mains 4 - 15 marks, 250 words	15
Original Mains 5 - 20 marks, 250 words	16
Original Mains 6 - 20 marks, 250 words	16

CIC and SIC - Solved Practice Workbook

Subject: Polity | **Control date:** 8 September 2026

Locked discipline: exactly 32 original MCQs before PYQs; ABCD repeated eight times; 128 substantive unique option-specific explanations; 32 unique question-specific examiner traps; verified-PYQ wording and official-key discipline; exactly six original Mains models.

Exactly **32 original MCQs** appear before PYQs. Correct-option sequence: ABCD repeated eight times. Every question has four substantive option-specific explanations and one unique question-specific examiner trap.

BASIC MCQS / REMEDIATION

MCQ 1. Legal identity

Which description is legally correct?

A. CIC and SIC are statutory bodies constituted under the RTI Act, 2005. B. CIC is a constitutional body while SIC is statutory. C. Both Commissions are tribunals under Article 323B. D. They are executive committees without adjudicatory powers.

Answer: A.

Option-specific explanations:

- **A:** Sections 12 and 15 create statutory Commissions under the RTI Act.
- **B:** Article 19(1)(a) supports the right to know but does not create the offices.
- **C:** Article 323B does not establish Information Commissions.
- **D:** Their section 19 decisions and section 20 powers are statutory adjudicatory functions.

Examiner trap 1: Constitutional value does not convert statutory origin into constitutional status.

MCQ 2. Meaning of information

A citizen asks a ministry to create a fresh expert opinion explaining why a policy failed. Which is most accurate?

A. The ministry must create it because opinions are listed in section 2(f). B. RTI reaches an existing recorded opinion but does not ordinarily require creation of a new one. C. The Commission must write the expert opinion. D. Every 'why' question is outside RTI even when reasons are already recorded.

Answer: B.

Option-specific explanations:

- **A:** The word 'opinion' covers an opinion already held in material form, not a compelled new opinion.
- **B:** Section 2(f), read with *CBSE*, supports access to held material and rejects a record-creation duty.
- **C:** The Commission adjudicates access; it is not the record-generating expert body.
- **D:** Recorded reasons or file notings can be information even if the request uses interrogative wording.

Examiner trap 2: The grammar of the request is less important than whether responsive recorded material exists.

MCQ 3. Forms of access

Which is expressly included in the section 2(j) right to information?

A. A direction granting the applicant's pension. B. A criminal investigation into a bribery allegation. C. Taking certified samples of material. D. A fresh legal opinion from the PIO.

Answer: C.

Option-specific explanations:

- **A:** RTI may disclose pension records but does not itself grant the pension.
- **B:** A corruption agency, not the Information Commission, conducts a criminal investigation.
- **C:** Section 2(j) expressly includes taking certified samples of material.

- **D:** The PIO supplies held information and need not generate fresh professional advice.

Examiner trap 3: Access to a sample is statutory; access to the underlying service entitlement is not.

MCQ 4. Public-authority gateway

Which proposition best states the section 2(h) boundary?

A. Every registered society is a public authority. B. Any government regulation proves control. C. Any financial concession is automatically substantial finance. D. Substantial control or substantial direct/indirect government finance requires a real, fact-sensitive link.

Answer: D.

Option-specific explanations:

- **A:** Registration supplies legal personality, not an RTI public-authority gateway.
- **B:** *Thalappalam* distinguishes substantial control from ordinary regulation or supervision.
- **C:** A concession may be relevant evidence but does not automatically establish substantial financing.
- **D:** Section 2(h), *Thalappalam* and *DAV College Trust* require a material institutional or financing nexus.

Examiner trap 4: Do not replace the statutory adjective 'substantial' with 'any'.

MCQ 5. Proactive disclosure

The central purpose of section 4(2) is to

A. promote maximum suo motu disclosure so citizens need minimum resort to requests. B. authorise the Commission to amend exemptions. C. replace every PIO with an online portal. D. make publication optional where records are digitised.

Answer: A.

Option-specific explanations:

- **A:** Section 4(2) expressly states the maximum-disclosure/minimum-request objective.
- **B:** Exemptions can be amended by competent law, not Commission preference.
- **C:** Digital publication supplements rather than abolishes statutory officers and assistance.
- **D:** Computerisation does not remove the proactive-disclosure duty.

Examiner trap 5: A website is a channel; section 4 is a continuing institutional duty.

MCQ 6. APIO route

An application submitted through a designated Assistant Public Information Officer ordinarily has

A. no valid filing effect until it reaches the PIO. B. five days added when computing the response period. C. a guaranteed five-day final decision. D. automatic fee exemption.

Answer: B.

Option-specific explanations:

- **A:** The APIO is a statutory receiving and forwarding point.
- **B:** The proviso to section 5(2) adds five days to the response computation.
- **C:** Five days is not the ordinary substantive decision period.
- **D:** Fee treatment depends on the applicable law/rules, not merely the receiving officer.

Examiner trap 6: Do not confuse the APIO addition with the section 6(3) transfer deadline.

MCQ 7. Application and transfer

Which statement is correct?

A. The applicant must prove a public-interest motive. B. A transfer may wait until the thirtieth day. C. A request needs no reasons, and a necessary section 6(3) transfer must occur within five days. D. Only the Commission may transfer an application.

Answer: C.

Option-specific explanations:

- **A:** Section 6(2) bars a reasons requirement.
- **B:** Section 6(3) uses a five-day outer limit, not thirty days.
- **C:** The Act combines motive-free filing with prompt transfer and applicant intimation.
- **D:** The receiving public authority itself transfers under section 6(3).

Examiner trap 7: A motive-free application can still be subject to lawful exemptions.

MCQ 8. Decision clocks

Which pairing is accurate under section 7?

A. Ordinary request: 45 days; life/liberty: 7 days. B. Ordinary request: 15 days; life/liberty: 24 hours. C. Ordinary request: 30 days; life/liberty: 5 days. D. Ordinary request: 30 days; life/liberty: 48 hours.

Answer: D.

Option-specific explanations:

- **A:** Forty-five days is associated with extended first-appeal disposal or section 24 human-rights information, not the ordinary request.
- **B:** Neither fifteen days nor twenty-four hours is the section 7 standard.
- **C:** Five days concerns transfer/APIO computations, not the life-or-liberty deadline.
- **D:** Section 7(1) provides thirty days ordinarily and forty-eight hours for life or liberty.

Examiner trap 8: Life-or-liberty urgency is not a general fast track for every important request.

MCQ 9. Delay consequences

A public authority gives no decision within the applicable period. The Act treats this as

A. deemed refusal, and delayed information is to be supplied free of charge. B. automatic criminal contempt. C. acceptance of every factual allegation in the application. D. termination of the applicant's appeal right.

Answer: A.

Option-specific explanations:

- **A:** Sections 7(2) and 7(6) create deemed refusal and no-fee consequences.
- **B:** The Act does not create automatic contempt for delay.
- **C:** Silence affects access procedure, not truth of allegations.
- **D:** Deemed refusal activates review rather than extinguishing it.

Examiner trap 9: Free supply after delay is distinct from compensation and section 20 penalty.

MCQ 10. Exemption method

Which is the soundest section 8 method?

A. Accept 'confidential' as a complete legal reason. B. Identify the exact clause and protected harm, then test overrides and severability. C. Withhold every record containing a personal name. D. Ask the third party to decide conclusively.

Answer: B.

Option-specific explanations:

- **A:** Confidentiality is not an extra-statutory exemption.
- **B:** A reasoned decision identifies statutory protection, harm, section 8(2) and section 10.
- **C:** A name alone does not decide the statutory exemption analysis.
- **D:** Section 11 consultation does not transfer decision power to the third party.

Examiner trap 10: The burden of legal classification remains with the statutory decision-maker.

MCQ 11. Public-interest override

Section 8(2) permits disclosure when

A. the applicant is a journalist. B. the record is politically controversial. C. public interest in disclosure outweighs harm to the protected interests, notwithstanding section 8(1) and the Official Secrets Act. D. twenty years have passed in every case.

Answer: C.

Option-specific explanations:

- **A:** Occupation does not itself trigger the override.
- **B:** Controversy may signal interest but is not the statutory balance.
- **C:** Section 8(2) states the general public-interest-over-harm test.
- **D:** The twenty-year rule is separate and retains clauses (a), (c) and (i).

Examiner trap 11: Public interest is a reasoned balance, not the applicant's status or curiosity.

MCQ 12. Twenty-year rule

For information relating to an event twenty years before the request, section 8(3) generally

A. preserves every exemption forever. B. removes section 9 copyright. C. requires disclosure only with court approval. D. favours disclosure but continues protection under section 8(1)(a), (c) and (i).

Answer: D.

Option-specific explanations:

- **A:** The subsection deliberately narrows most exemption claims after twenty years.
- **B:** Section 9 remains a distinct copyright ground.
- **C:** No universal court-preclearance mechanism appears in section 8(3).
- **D:** The three expressly preserved clauses concern sovereignty/security etc., legislative privilege and Cabinet-paper material.

Examiner trap 12: Remember the exact surviving letters: A, C and I.

MCQ 13. Copyright

Section 9 may justify rejection where providing access would

A. infringe copyright subsisting in a person other than the State. B. embarrass the public authority. C. reveal an official error. D. require severance of an exempt line.

Answer: A.

Option-specific explanations:

- **A:** The copyright must subsist in a non-State person for section 9's rejection ground.
- **B:** Embarrassment is not a statutory exemption.
- **C:** Administrative error is often precisely what accountability records reveal.
- **D:** Section 10 ordinarily supports partial disclosure rather than total rejection.

Examiner trap 13: Copyright and confidentiality are different legal concepts.

MCQ 14. Severability

A file contains one exempt paragraph and separable non-exempt expenditure totals. The correct first step is to

A. reject the entire file. B. apply section 10 and disclose the reasonably severable remainder. C. seek Parliament's permission. D. convert the request into a complaint.

Answer: B.

Option-specific explanations:

- **A:** Blanket rejection ignores the statutory less-restrictive tool.
- **B:** Section 10 preserves access to the separable non-exempt portion with reasons and review details.
- **C:** Parliament does not pre-clear individual RTI severance decisions.
- **D:** The form of the request does not change because a mixed record is involved.

Examiner trap 14: A single protected passage does not contaminate every page.

MCQ 15. Third-party procedure

Which statement about section 11 is correct?

A. It is an absolute exemption for all third-party information. B. It gives the third party a veto. C. It provides notice and representation before the PIO decides under the actual exemption/public-interest rules. D. It applies only when the third party is a private company.

Answer: C.

Option-specific explanations:

- **A:** Section 11 is procedural rather than a new exemption.
- **B:** The third party may object, but the PIO remains the decision-maker.
- **C:** Notice, representation, balance, decision and appeal form the statutory route.
- **D:** Section 2(n) includes a public authority within 'third party'.

Examiner trap 15: Consultation protects participation, not private control over the statutory decision.

MCQ 16. CIC composition

The Central Information Commission consists of

A. exactly eleven Information Commissioners besides the Chief. B. the Chief and any number fixed annually by Cabinet. C. only a Chief Information Commissioner. D. the Chief Information Commissioner and not more than ten Information Commissioners.

Answer: D.

Option-specific explanations:

- **A:** The ceiling does not require eleven other members.

- **B:** Cabinet cannot disregard the statutory maximum.
- **C:** The Act permits additional Information Commissioners.
- **D:** Section 12 states the Chief plus up to ten.

Examiner trap 16: A statutory maximum is not proof of current filled strength.

MCQ 17. CIC appointment

Who appoints Central commissioners and on whose recommendation?

A. The President, on a committee of PM, Lok Sabha LoP/deemed leader and a Union Cabinet Minister nominated by the PM. B. The Prime Minister alone, after consulting the CJI. C. The Lok Sabha, by a special-majority resolution. D. The President, on a committee including the Speaker and Cabinet Secretary.

Answer: A.

Option-specific explanations:

- **A:** This reproduces section 12(3), including opposition participation.
- **B:** The CJI is not a member of this selection committee.
- **C:** Parliament does not directly elect the Commission.
- **D:** Neither the Speaker nor Cabinet Secretary occupies the statutory seat.

Examiner trap 17: The appointing authority and committee chair are different offices.

MCQ 18. SIC appointment

The State Information Commission appointment committee includes

A. the Governor as chair and the High Court Chief Justice. B. the Chief Minister as chair, Assembly LoP/deemed leader and a State Cabinet Minister nominated by the CM. C. both Houses' Leaders of Opposition in every State. D. the Speaker, Chief Secretary and Advocate-General.

Answer: B.

Option-specific explanations:

- **A:** The Governor appoints but does not chair the recommendatory committee.
- **B:** Section 15(3) supplies the CM-led three-member composition.
- **C:** The Legislative Council opposition leader is not a statutory member.
- **D:** None of these three offices substitutes for the named committee.

Examiner trap 18: Bicameralism does not add a Council seat to the section 15 committee.

MCQ 19. Qualifications and bars

Which candidate satisfies the statutory design most clearly?

A. A serving MP with journalism experience. B. A party office-bearer who resigns after appointment. C. An eminent public-life expert in science and technology with no barred office, party, business or professional connection. D. Only a retired Supreme Court judge.

Answer: C.

Option-specific explanations:

- **A:** Legislative membership is expressly barred.
- **B:** A current political-party connection is incompatible with office and should not be postponed.
- **C:** Science and technology is a listed field, subject to the conflict bars.
- **D:** Judicial office is neither required nor the exclusive route.

Examiner trap 19: The Commission is multidisciplinary, but eligibility never overrides disqualification.

MCQ 20. Act versus Rules

Which statement correctly separates the post-2019 sources?

A. The Act itself fixes every current salary amount. B. State legislatures prescribe SIC tenure independently. C. The Rules abolished the age ceiling and removal protection. D. The amended Act delegates specified term/service matters; the 2019 Rules prescribe a three-year term and current pay framework.

Answer: D.

Option-specific explanations:

- **A:** Current fixed amounts are found in the service-condition Rules.
- **B:** The Central rule framework applies to the specified State offices under the amended Act.
- **C:** The statutory age ceiling and removal scheme survived.
- **D:** This correctly distinguishes parliamentary delegation from delegated prescription.

Examiner trap 20: A rule-prescribed fact should not be misattributed to the text of Parliament's section.

MCQ 21. Reappointment

Which statement is accurate?

A. An IC is not reappointable as IC but may be appointed Chief through the statutory process, subject to the aggregate five-year limit. B. Every commissioner may receive unlimited three-year renewals. C. The Chief may be reappointed once by executive order. D. Elevation from IC to Chief is automatic by seniority.

Answer: A.

Option-specific explanations:

- **A:** The Act permits possible elevation while limiting aggregate service.
- **B:** Same-office reappointment is barred, not renewable without limit.
- **C:** The Chief is not eligible for reappointment as Chief.
- **D:** Appointment as Chief still requires the statutory selection and appointing process.

Examiner trap 21: Eligibility for elevation is not a vested right to elevation.

MCQ 22. Removal

For proved misbehaviour or incapacity of a State Information Commissioner, removal is by

A. the President after a High Court inquiry. B. the Governor after a Supreme Court inquiry on the Governor's reference. C. the Chief Minister after Cabinet approval. D. the State Legislature by impeachment.

Answer: B.

Option-specific explanations:

- **A:** The President is the Central removal authority, not the SIC authority.
- **B:** Sections 17 and the Supreme Court inquiry route preserve protected State removal.
- **C:** The Chief Minister cannot unilaterally remove under this ground.
- **D:** The Act does not create a legislative-impeachment procedure.

Examiner trap 22: Do not import the SHRC's different removal architecture.

MCQ 23. Complaint and appeal

An applicant primarily wants an order supplying information after denial. The safest statutory route is

A. only a section 18 complaint. B. a civil suit under section 23. C. section 19 first and second appeals, consistent with *State of Manipur*. D. a disciplinary complaint to the PIO's employer.

Answer: C.

Option-specific explanations:

- **A:** Section 18 inquiry is not the automatic disclosure remedy.
- **B:** Section 23 bars ordinary proceedings and RTI supplies its appeal route.
- **C:** The Supreme Court locates the disclosure remedy in section 19's appellate scheme.
- **D:** Discipline may address misconduct but does not replace the access appeal.

Examiner trap 23: Choose the route by the relief sought, not merely by the officer's conduct.

MCQ 24. Section 18 powers

Which power belongs to a section 18 inquiry?

A. Granting the applicant's disputed land title. B. Convicting the PIO of corruption. C. Striking down section 8(1)(j). D. Summoning witnesses and examining evidence on oath.

Answer: D.

Option-specific explanations:

- **A:** The Commission is not the title-adjudicating forum.
- **B:** Criminal conviction belongs to a competent criminal court.
- **C:** A statutory Commission cannot invalidate Parliament's provision.
- **D:** Section 18(3) confers enumerated civil-court-like evidence powers.

Examiner trap 24: Evidence powers do not alter the Commission's statutory identity.

MCQ 25. First appeal

The ordinary first appeal lies

A. within thirty days to an officer senior in rank to the PIO in that public authority. B. within ninety days directly to the Supreme Court. C. to the third party whose record is sought. D. only after a section 18 complaint.

Answer: A.

Option-specific explanations:

- **A:** Section 19(1) creates this departmental review, subject to condonation.
- **B:** Ninety days concerns the second appeal, not Supreme Court filing.
- **C:** A third party may have appeal rights but is not the applicant's FAA.
- **D:** Complaint is not a mandatory precondition to first appeal.

Examiner trap 25: The FAA is internal to the public authority but distinct from the PIO.

MCQ 26. Second appeal and burden

In a section 19 second appeal

A. the applicant must prove the PIO acted mala fide before disclosure can be ordered. B. the PIO bears the onus of proving that denial was justified, and the Commission's decision is binding under the Act. C. the FAA's decision is constitutionally final. D. the Commission cannot examine exemptions.

Answer: B.

Option-specific explanations:

- **A:** Mala fides is not a prerequisite to appellate disclosure.

- **B:** Sections 19(5) and 19(7) create the burden and binding-force rules.
- **C:** Constitutional review survives and the second appeal is statutory.
- **D:** Exemption review is central to deciding whether denial was justified.

Examiner trap 26: Burden reversal corrects the public authority's informational advantage.

MCQ 27. Section 19 remedies

Which is within section 19(8)?

A. Ordering criminal imprisonment of a minister. B. Rewriting the RTI Act's exemption list. C. Requiring improved record-management practices and compensating proven loss or detriment. D. Creating a record that never existed.

Answer: C.

Option-specific explanations:

- **A:** The Commission has no general sentencing power.
- **B:** It applies rather than amends Parliament's law.
- **C:** Systemic compliance directions and compensation are expressly contemplated.
- **D:** RTI does not impose a record-creation duty.

Examiner trap 27: Compliance power is broad within RTI administration, not across all governance disputes.

MCQ 28. Penalty discipline

Which statement is legally accurate?

A. Every one-day delay automatically produces Rs 25,000 penalty. B. Penalty is a fine on the ministry and replaces compensation. C. The applicant bears the burden to prove the PIO lacked due care. D. After hearing, the responsible PIO may face Rs 250 per day up to Rs 25,000, while persistent default may support disciplinary recommendation.

Answer: D.

Option-specific explanations:

- **A:** The Act requires statutory grounds and a reasonable-cause/diligence inquiry.
- **B:** Section 20 penalty is personal; compensation is separately borne by the public authority.
- **C:** The PIO bears the burden of proving reasonable and diligent action.
- **D:** This states rate, cap, hearing and the distinct section 20(2) route.

Examiner trap 28: Penalty, compensation and discipline differ in target, purpose and process.

MCQ 29. Section 24

A human-rights-violation request concerning a listed Central security organisation

A. uses the CIC-approval route and a forty-five-day period; corruption allegations do not automatically carry those extra conditions. B. is absolutely excluded in every circumstance. C. must be answered within forty-eight hours without approval. D. can be decided only by Parliament.

Answer: A.

Option-specific explanations:

- **A:** The human-rights proviso adds CIC approval and forty-five days.
- **B:** Section 24 expressly preserves corruption and human-rights allegation routes.
- **C:** The forty-eight-hour section 7 rule is not the specified section 24 human-rights clock.
- **D:** The statutory administrative route operates without parliamentary pre-clearance.

Examiner trap 29: Separate the shared exception categories from the special conditions attached only to human rights.

MCQ 30. Override and court bar

Which combined statement is correct?

A. Section 22 repeals every exemption and section 23 abolishes writ review. B. Section 22 overrides inconsistent external law while RTI's own limits remain; section 23 does not oust Articles 226 and 32. C. Section 23 authorises a fresh civil suit against every Commission order. D. The Official Secrets Act always prevails over section 8(2).

Answer: B.

Option-specific explanations:

- **A:** Section 22 does not erase sections 8, 9 or 24, and statutory text cannot extinguish constitutional review.
- **B:** This correctly states internal calibration and constitutional review.
- **C:** Section 23 points away from ordinary proceedings rather than creating them.
- **D:** Sections 8(2) and 22 reject automatic OSA supremacy.

Examiner trap 30: Statutory finality and constitutional judicial review coexist.

MCQ 31. Case-law control

Which pairing is accurate?

A. *Girish Deshpande* interpreted the post-2025 clause. B. *Jayantilal Mistry* held every bank customer's record automatically public. C. *Subhash Chandra Agarwal* held the CJI office a public authority but preserved privacy/confidentiality/independence balancing. D. *CBSE* required every authority to create explanatory answers.

Answer: C.

Option-specific explanations:

- **A:** The decision applied the earlier personal-information text.
- **B:** The RBI case rejected a blanket fiduciary claim, not every possible exemption.
- **C:** This states the Constitution Bench's coverage holding and its qualification.
- **D:** *CBSE* limits RTI to held information rather than compelling creation.

Examiner trap 31: Always pair a case with its date-controlled statutory context.

MCQ 32. Monitoring and access reform

Which reform bundle best fits the Act?

A. Require applicants to prove good motive. B. Eliminate physical filing in favour of a portal. C. Treat every repetitive request as abuse without hearing. D. Advance vacancy planning, section 4 audits, better records, compliance tracking, PIO training and assisted offline/digital access.

Answer: D.

Option-specific explanations:

- **A:** Section 6(2) rejects a reasons requirement.
- **B:** Digital-only access can deepen exclusion and ignores assistance duties.
- **C:** No blanket extra-statutory abuse exemption should be invented.
- **D:** The bundle addresses adjudicatory capacity, prevention, enforcement and the digital divide.

Examiner trap 32: A reform is defensible when it strengthens statutory access without adding a new exclusion.

PYQS AND ANSWER PRACTICE

Verified-PYQ and official-key discipline

The audited repository routing ledgers identify one direct UPSC demand for this owner. Its wording is reproduced from the 2020 GS-II paper. UPSC does not publish an official model answer for this Mains question; the solution below is examiner-oriented, not an official key. No objective stem or key is reconstructed.

Verified Mains PYQ - UPSC Civil Services (Main) Examination 2020, GS-II, Question 2 - 10 marks, 150 words

"Recent amendments to the Right to Information Act will have profound impact on the autonomy and independence of the Information Commission". Discuss. (Answer in 150 words)

Demand decode: Explain exactly what the 2019 amendment moved from the Act to executive prescription, analyse the independence mechanism, present surviving safeguards and reach a graded conclusion.

Model solution

The 2019 amendment did not remove the Information Commissions' adjudicatory powers, but it weakened structural insulation.

Earlier, the RTI Act itself fixed a five-year term and linked commissioners' salaries to Election Commission offices. The amendment replaced those statutory guarantees with tenure, pay and service conditions prescribed by the Central Government; the 2019 Rules set a three-year term. Since CIC/SIC decide disclosure disputes involving governments, executive control over these conditions creates a perceived dependence and may chill robust decisions, especially for State Commissions.

However, important safeguards survive: opposition participation in selection, the sixty-five-year age ceiling, same-office reappointment restrictions, Supreme-Court-inquiry removal for proved misbehaviour or incapacity, binding appellate decisions and personal PIO penalties.

Thus, the amendment changes the degree, not the existence, of independence. Advance transparent appointments, secure institutional staffing and stronger statutory insulation of service conditions would better align autonomy with accountability.

ORIGINAL MAINS PRACTICE - EXACTLY SIX MODELS

Original Mains 1 - 10 marks, 150 words

Question: Distinguish a section 18 complaint from a section 19 appeal under the RTI Act.

Model solution

A complaint and an appeal address related failures but provide different routes.

Complaint: Section 18 covers absence of a PIO, refusal to accept an application, denial, delay, unreasonable fee, or incomplete, misleading or false information. The Commission has civil-court evidence powers and may inspect covered records. Contravention can attract section 20 consideration.

Appeal: Section 19 challenges a decision or deemed refusal. The first appeal lies to a senior departmental officer; the second lies to the Commission. The PIO bears the denial burden, and the Commission may order disclosure, compliance and compensation.

In *Chief Information Commissioner v. State of Manipur* (2011), the Supreme Court held that section 18 inquiry is not a substitute for the section 19 disclosure appeal.

Therefore, a person seeking the record should ordinarily use the appeal ladder; complaint jurisdiction supervises access failures.

Audited prose count: 135 words.

Original Mains 2 - 10 marks, 150 words

Question: Explain how section 20 balances deterrence with procedural fairness.

Model solution

Section 20 creates personal deterrence without making penalty automatic.

The Commission may penalise the responsible CPIO/SPIO for unjustified refusal, delay, mala fide denial, knowingly incorrect, incomplete or misleading information, destruction, or obstruction. The rate is Rs 250 per day, capped at Rs 25,000.

Fairness has three controls: a reasonable hearing, proof of a statutory ground rather than mere adverse outcome, and the PIO's opportunity to prove reasonable and diligent conduct.

Persistent default may separately support disciplinary recommendation. Compensation under section 19(8)(b), borne by the public authority, instead restores applicant loss.

Thus, section 20 combines individual accountability, due care and proportionate consequence.

Audited prose count: 105 words.

Original Mains 3 - 15 marks, 250 words

Question: Analyse the statutory powers and institutional limits of the CIC and SIC.

Model solution

Information Commissions are specialised statutory adjudicators with stronger legal tools than merely recommendatory watchdogs, but their jurisdiction remains tied to information access.

Powers: Under section 18 they receive complaints and conduct inquiries with civil-court evidence powers, including summons, oath, affidavit evidence, requisition of records and inspection of any RTI-covered record. Under section 19 they decide second appeals; the denying PIO bears the burden, and the decision is binding. Section 19(8) permits disclosure and systemic compliance directions concerning PIO appointment, publication, record management, training and reporting. It also permits compensation for applicant loss. Section 20 authorises personal PIO penalty of Rs 250 per day up to Rs 25,000 and disciplinary recommendation for persistent default.

Limits: *Chief Information Commissioner v. State of Manipur* confines the disclosure remedy to the appeal route rather than treating section 18 complaint as interchangeable. The Commission supplies access to held or controlled information; it cannot create a record, produce a fresh opinion, grant the underlying pension or licence, investigate and prosecute corruption, rewrite exemptions, sentence officials or exercise general contempt jurisdiction. Section 23 does not prevent constitutional review under Articles 226 and 32.

Thus, CIC/SIC possess binding, corrective and deterrent powers within RTI administration. Their strength lies in exact statutory enforcement, not in becoming general courts or grievance commissions.

Audited prose count: 215 words.

Original Mains 4 - 15 marks, 250 words

Question: Discuss the effect of the RTI (Amendment) Act, 2019 on Information Commission independence.

Model solution

The 2019 amendment altered the structural source of Information Commission independence rather than abolishing the institution.

Change: Earlier, the RTI Act fixed a five-year term and linked salaries to Election Commission offices. The amendment made tenure, pay, allowances and service conditions matters prescribed by the Central Government. The 2019 Rules prescribe three years, retain the statutory age ceiling of sixty-five and fix current pay. Residuary and relaxation provisions also place significant service control with the Centre.

Independence concern: CIC and SIC adjudicate denial by public authorities, including governments. Moving core safeguards from parliamentary text to executive rules can create perceived dependence and a chilling risk. Applying the same central rule-making power to State Commissions also raises a federal-design concern. Shorter tenure may reduce institutional continuity.

Counter-position: Statutory bodies need not replicate a constitutional commission. High fixed pay, opposition participation in selection, non-reappointment rules, Supreme-Court-inquiry removal for proved misbehaviour/incapacity, binding appellate powers and section 20 penalty survive.

Assessment: Independence depends additionally on timely appointments, adequate staff, reasoned selection and compliance with orders. *Anjali Bhardwaj v. Union of India* underlines advance, transparent appointments.

The amendment therefore weakens statutory insulation without making every decision controlled. Restoring clearer tenure protection, publishing objective selection material and securing functional secretariats would combine flexibility with credible autonomy.

Audited prose count: 211 words.

Original Mains 5 - 20 marks, 250 words

Question: Examine the transparency-privacy balance under the RTI Act after the substitution of section 8(1)(j).

Model solution

The current RTI framework begins with a broader clause-level personal-information exemption but retains general disclosure controls.

Current text: DPDP Act section 44(3) came into force on 13 November 2025 and substituted section 8(1)(j) with "information which relates to personal information". The former public-activity, unwarranted-invasion, larger-public-interest and legislative-parity wording is historical.

Privacy effect: The shorter clause can cover personal information without requiring the PIO to prove the former internal tests. This protects dignity and informational privacy, but may also shield records where personal identity intersects with public office, conflict of interest or public expenditure.

Transparency controls: Section 8(2) still permits disclosure where public interest outweighs harm to protected interests. Section 10 requires reasonably severable non-exempt material to be released. Reasons, first appeal, second appeal and constitutional judicial review remain. The proportionality method in *CPIO, Supreme Court v. Subhash Chandra Agarwal* remains constitutionally instructive, although its statutory analysis used the earlier clause.

Case discipline: *Girish Ramchandra Deshpande* also applied the former text and should not be quoted as the current wording. *Jayantilal N. Mistry* rejects generic fiduciary secrecy but does not erase specific exemptions.

Therefore neither privacy absolutism nor unchanged-transparency rhetoric is defensible. Decision-makers should identify privacy harm, test section 8(2), use redaction and give reviewable reasons, while courts preserve a proportionate balance between Articles 19(1)(a) and 21.

Audited prose count: 223 words.

Original Mains 6 - 20 marks, 250 words

Question: Evaluate the RTI regime from request architecture to Commission enforcement, and suggest reforms.

Model solution

The RTI Act creates a complete accountability chain, but the chain is only as strong as its records, officers and adjudicatory capacity.

Prevention and access: Section 4 requires catalogued records and proactive disclosure. Sections 5-7 provide PIOs/APIOs, reason-free applications, assistance, transfer within five days, a thirty-day norm, forty-eight hours for life or liberty, deemed refusal and free supply after delay.

Review and enforcement: Section 19 provides first and second appeals, places the denial burden on the PIO and makes Commission decisions binding. Section 19(8) supports disclosure, systemic compliance and compensation; section 20 supplies personal penalty and disciplinary recommendation. Sections 25-26 add reporting, training and public awareness.

Weaknesses: Delayed appointments and vacancies generate backlogs; weak record management causes non-availability; perfunctory first appeals shift avoidable disputes upward; inconsistent penalty practice reduces deterrence; non-compliance makes binding orders symbolic. Digital-only systems can exclude citizens facing connectivity, language, disability or literacy barriers. Privacy must be protected under current section 8(1)(j), but broad

secrecy can defeat accountability.

Reforms: Start selections before vacancies, publish objective criteria and shortlists, provide functionally secure registries and staff, audit section 4, modernise lawful record retention, track order compliance, issue reasoned penalty decisions and preserve assisted physical, local-language and accessible filing.

RTI is not legally toothless. Its democratic value depends on converting statutory clocks and binding powers into inclusive, timely and reviewable disclosure.

Audited prose count: 225 words.